

Strategic Legal Blueprint: Advancing Equal Status Complaints and Civil Litigation Against the University of Galway

Executive Summary and Jurisprudential Context

The following comprehensive report delineates an exhaustive legal, administrative, and procedural strategy to address a complex matrix of grievances against the University of Galway. The analysis focuses on systemic disability discrimination, procedural malfeasance, administrative overreach, and breaches of statutory duty by senior university officers. The strategic architecture is bifurcated into two distinct but parallel legal avenues designed to hold the institution accountable across both statutory equality tribunals and the superior courts of common law.

The first avenue involves the Workplace Relations Commission (WRC). Two targeted Form ES1 notifications under the Equal Status Acts 2000–2018 are required. The first addresses the discriminatory refusal of admission to the Máistir Gairmiúil san Oideachas (MGO) programme by the School of Education. The second addresses the ongoing discriminatory filtering and interception of electronic communications by the Office of the Dean of Students, which currently prejudices the applicant's prospective enrolment in the MSc in Artificial Intelligence scheduled for September 2026.

The second avenue involves a separate, plenary civil action in the High Court against the University of Galway. This action specifically targets the Office of the Dean of Students (Professor Ciara Meehan) and the Office of the President for breach of fair procedures, defamation, negligence, and misfeasance in public office. These tortious claims arise from the misappropriation of the QA269 Support for Students in Crisis policy, the imposition of a punitive Stage 3 suspension without due process, the stonewalling of a formal QA611 student complaint, and the generation of defamatory risk assessments that caused severe reputational and psychological damage.

A critical imperative of this blueprint is navigating the Irish legal doctrine of *res judicata* and the rule in *Henderson v Henderson*. It is paramount to ensure that the statutory WRC complaints do not legally preclude, estop, or compromise the High Court civil suit. The report provides the precise theoretical framing, jurisdictional segregation, and drafting architecture required to execute this dual-track litigation strategy effectively, ensuring that the applicant's right to retrain is vindicated while preserving their right to seek plenary damages for institutional malfeasance.

Factual Chronology and Evidentiary Matrix

To construct a robust legal strategy, it is necessary to establish a precise chronological and evidentiary matrix. The applicant's history with the University of Galway spans several years, characterized by high academic achievement interspersed with periods of severe, documented trauma arising from external abuse and internal institutional failures.

The applicant possesses a Bachelor of Arts in Mathematics and Education (BME), graduating in 2021 after overcoming significant medical and psychological hurdles.[1, 1] The applicant subsequently attained a First Class Honours Higher Diploma in Applied Science (Software Design & Development), demonstrating exceptional proficiency in computer science, including modules in programming, algorithms, and systems architecture. The applicant suffers from documented Complex Post-Traumatic Stress Disorder (CPTSD) and a Traumatic Brain Injury (TBI), conditions formally recognized by the University's Student Counselling Service and Access Centre.[1, 1]

The administrative conflict escalated significantly during the summer of 2024. On September 3, 2024, the applicant submitted a formal QA611 Student Complaint regarding a severe incident of profiling, harassment, and physical injury involving Campus Security and Gardaí that occurred in the summer of 2019. The complaint explicitly noted the applicant's disability and vulnerability. Rather than processing this complaint according to the University's QA611 procedures, the institution responded with administrative hostility.

On September 19, 2024, without conducting a meeting, addressing the QA611 complaint, or affording the applicant a right to be heard, Interim President Professor Peter McHugh and Dean of Students Professor Ciara Meehan invoked an immediate "Stage 3" temporary suspension under the QA269 Support for Students in Crisis policy. This action bypassed the standard supportive interventions of Stages 1 and 2, imposing an immediate campus ban and severe communication restrictions. Concurrently, internal risk assessments were generated that characterized the applicant's trauma-induced communications as "disturbing" and framed the applicant as a risk to the university community, leading to severe reputational damage and the receipt of death threats from individuals claiming the applicant was a danger to the campus.[1, 1]

The applicant sought to re-enter the University to complete the Máistir Gairmiúil san Oideachas (MGO) programme on two separate occasions to retrain as a teacher through the medium of Irish. The first application, submitted in July 2025 for Computer Science, was rejected on the pretext that the Computer Science modules were allegedly not available.[1, 1] To bypass this administrative falsehood, the applicant submitted a second application in early 2026 for the subject of Mathematics—a subject demonstrably available on the MGO. This application was summarily refused on March 26, 2026, solely on the grounds that the applicant already holds a 2021 English-medium teaching qualification. Both refusals ignored the functional dormancy of the applicant's prior qualification due to their inability to complete the induction process (Droichead) because of their disability.[1, 1]

The Doctrine of Claim Preclusion: Navigating *Henderson v Henderson*

When advancing parallel claims in the Workplace Relations Commission and the civil courts, the most significant peril is the duplication of proceedings and the invocation of claim preclusion. The rule in *Henderson v Henderson* (1843) 3 Hare 100 is a foundational common law doctrine applied vigorously in Irish jurisprudence. It dictates that there should be finality in litigation and that a party should not be twice vexed in the same matter. Specifically, it requires that all issues arising from the same set of facts or circumstances must be litigated in a single proceeding.

Jurisprudential Parameters in Irish Employment and Equality Law

The application of *Henderson v Henderson* in the context of Irish equality law has been subject to extensive judicial scrutiny. In *Cunningham v Intel Ireland Ltd* IEHC 207, the High Court dealt explicitly with the duplication of proceedings between statutory equality tribunals and the civil courts. The plaintiff in *Cunningham* pursued an equality claim alleging discrimination that significantly affected her "health and wellbeing." Simultaneously, she issued a High Court personal injury summons relating to the exact same damage to her health and wellbeing caused by the same workplace events. The High Court struck out the personal injury summons as an abuse of process, ruling that the plaintiff could not litigate the same factual matrix and seek redress for the same injury in two different venues.

Similarly, in *Culkin v Sligo County Council* IEHC 46, the High Court initially dismissed a personal injury action on the basis that it resulted from the "very same alleged incidents of mistreatment" as a statutory equality claim. However, the Court of Appeal later clarified in 2017 that an unsuccessful statutory claim does not automatically preclude a common law personal injuries claim if the causes of action and the nature of the injuries are distinct, adopting a "merits-based approach" to the rule in *Henderson v Henderson*.

More recently, the strict application of *res judicata* regarding WRC decisions was reaffirmed. If the WRC issues a determination on the merits of a discrimination claim, that decision is final for the purposes of *res judicata* unless properly appealed to the Circuit Court. Therefore, the drafting of the WRC ES1 notifications must proactively disclaim any overlap with the civil torts.

Strategic Jurisdictional Segregation

To immunize the proposed litigation against a strike-out motion by the University of Galway, a hermetic firewall must be established between the WRC complaints and the High Court suit. The claims must rely on distinct factual matrices, invoke different legal rights, and seek mutually exclusive reliefs. The following table illustrates the necessary strategic segregation.

Legal Venue / Mechanism	Focus of the Claim	Facts Relied Upon	Reliefs Sought	Excluded Elements (To Avoid Preclusion)
WRC (Equal Status Act Complaint 1)	Denial of Access to Education	MGO Application Refusals (July 2025 and March 2026); False claims regarding Module ED6156; Prejudice regarding NQT status.	Orders directing admission; Statutory compensation for discrimination (capped at €15,000).	NO claims for personal injury, psychiatric damage, defamation, or breach of QA269 procedures.
WRC (Equal Status Act Complaint 2)	Discriminatory Denial of Services	Email filtering mechanism implemented by ISS and the Dean of Students intercepting MSc AI extension requests.	Orders to cease email filtering to allow MSc AI application; Statutory compensation.	NO claims regarding the underlying reasons for the QA269 suspension or reputational harm.
High Court	Administrative	QA611 Complaint	Plenary damages	NO claims

Legal Venue / Mechanism	Focus of the Claim	Facts Relied Upon	Reliefs Sought	Excluded Elements (To Avoid Preclusion)
(Plenary Civil Suit)	Torts, Defamation, Negligence	handling (Sept 3, 2024); Imposition of QA269 Stage 3 Suspension (Sept 19, 2024); Defamatory Risk Assessments.	for negligence, breach of fair procedures, defamation, and misfeasance.	regarding the MGO refusal, curriculum availability, or general Equal Status discrimination.

By explicitly stating in the WRC ES1 forms that the complaint is strictly confined to the statutory denial of services and education, and expressly reserving all tortious claims regarding the QA269 suspension for the High Court, the risk of a *Henderson v Henderson* preclusion is effectively neutralized. The WRC claims address the *forward-looking* denial of educational access (the MGO and the MSc in AI), while the High Court claim addresses the *backward-looking* tortious damage inflicted during the September 2024 disciplinary overreach.

WRC ES1 Complaint I: The School of Education and the MGO Refusals

The first statutory complaint under the Equal Status Acts 2000–2018 targets the School of Education regarding the discriminatory refusal of the applicant's entry into the Máistir Gairmiúil san Oideachas (MGO) programme across two application cycles (2025 and 2026).

Legal Framework: NQT Status, Droichead, and the Irish Medium Barrier

The Equal Status Acts prohibit discrimination in the provision of goods, services, and education on nine distinct grounds, including disability. Section 7 of the Act specifically applies to educational establishments, making it unlawful to discriminate in the admission, access, or conditions of participation of students.

The University's ultimate refusal in 2026 was predicated entirely on the assertion that the applicant already holds a teaching qualification (BA Mathematics & Education, 2021). While seemingly neutral, the rigid application of a "no prior qualified teachers" rule constitutes indirect discrimination and a permanent barrier to the Irish language for this specific applicant.

Crucially, the applicant is a **Newly Qualified Teacher (NQT)**, not a fully qualified teacher. The Teaching Council of Ireland requires NQTs to complete the *Droichead* induction process—a prolonged period of full-time professional practice—to achieve full registration. Due to the severe impact of Complex PTSD and a Traumatic Brain Injury, combined with the time elapsed since their 2021 graduation and time spent working as a software developer, the applicant has been medically unable to complete the requisite Droichead conditions. Consequently, their prior English-speaking qualification is functionally dormant.

Furthermore, the 2021 qualification was completed in the English language. To teach in a State-recognised Gaelcholáiste, specific Irish-medium training and fluency are strictly regulated. The MGO is the only dedicated Irish-speaking Masters in Education programme of its kind. By refusing the applicant entry because they possess an old, English-medium NQT qualification,

the School of Education has enacted a policy that permanently precludes the applicant from ever becoming an Irish-speaking teacher. This defies the statutory duty to provide reasonable accommodation for a disability that necessitated a change in career trajectory and retraining modality.

Pedagogical Imperatives: COGG Funding and Apple Distinguished School Mandates

The irrationality of the University's refusal is further highlighted by the specific funding mandates and strategic objectives of the MGO programme. The Irish education system faces an acute crisis in teacher supply, particularly regarding STEM subjects in the Irish-medium sector. Data presented to the Oireachtas by Dr. Cornelia Connolly indicates that as of August 2022, there were only 34 accredited Computer Science teachers registered in the entire state.

To combat this, An Chomhairle um Oideachas Gaeltachta agus Gaelscolaíochta (COGG) provides substantial funding, including €2,000 bursaries, specifically to encourage students to undertake the MGO and teach through Irish. The applicant, possessing a First Class Honours Higher Diploma in Software Design and native-level Irish proficiency, perfectly aligns with COGG's strategic objectives.

Moreover, the MGO is uniquely designated as an Apple Distinguished School, the first such educational programme outside the US to attain this recognition. This status mandates a 1:1 iPad deployment and requires student teachers to act as ambassadors for technology-enhanced learning, becoming Apple Teachers for iPad and Mac. The applicant's advanced technical background in software engineering, algorithms, and computer architecture makes them an optimal candidate to fulfill these demanding technological mandates. Rejecting such a candidate defies both the COGG funding imperatives and the Apple Distinguished School obligations, demonstrating that the refusal was not a rational administrative decision but rather a discriminatory exclusion.

Drafting the ES1 Notification: School of Education

The ES1 notification is a mandatory pre-litigation step under the Equal Status Acts. It must be drafted with precision to ensure it covers all statutory requirements while exposing the pretextual nature of the dual refusals.

Section 5: Details of the Alleged Discrimination "I hereby submit this notification under the Equal Status Acts 2000–2018, alleging discrimination on the ground of Disability (Section 3(2)(g)), and a failure to provide Reasonable Accommodation (Section 4), by an Educational Establishment (Section 7).

I have been denied access to the Máistir Gairmiúil san Oideachas (MGO) across two application cycles. In July 2025, my application to retrain as an Irish-speaking Computer Science teacher was refused based on the University's false claim that the advertised Computer Science modules were 'not available'—despite Module ED6156 clearly remaining on the University's curriculum. To bypass this administrative barrier, I applied again in 2026 for the subject of Mathematics, which I hold undergraduate credits for and which is unequivocally provided by the MGO.

On 26 March 2026, the University summarily refused my Mathematics application. The sole stated rationale was that my prior 2021 qualification (BA Mathematics & Education) precluded me from an Initial Teacher Education course. This decision constitutes indirect discrimination, a

failure to provide reasonable accommodation, and a permanent barrier to my right to teach in the Irish language.

I am a Newly Qualified Teacher (NQT), not a fully qualified teacher. I have not completed the mandatory Teaching Council *Droichead* induction period, which requires prolonged full-time professional practice. Due to a documented Traumatic Brain Injury (TBI) and Complex PTSD, as well as time spent working as a software developer, my 2021 teaching qualification is functionally dormant.

Crucially, my 2021 degree is an English-speaking qualification. The MGO is the singular pathway to retrain and qualify to teach through the medium of Irish in the Gaelcholáiste sector. By rigidly applying a 'no previously qualified teachers' rule against my five-year-old, English-medium NQT status, the School of Education has effectively ruled that I can never become an Irish-speaking teacher. My application to the MGO was a necessary rehabilitative step to assert my statutory 'Right to Retrain' in a new modality (Irish-medium) and to secure the required pedagogical placements to fulfill my *Droichead* conditions.

Preclusion and Jurisdiction Clause: For the strict avoidance of doubt, and in accordance with the rule in *Henderson v Henderson*, this complaint is exclusively confined to the denial of educational access under the Equal Status Acts regarding the MGO programme. It expressly excludes any and all claims for personal injury, defamation, negligence, misfeasance, or breach of fair procedures relating to the QA269 suspension enacted on 19 September 2024, which are reserved entirely for separate High Court plenary proceedings."

Section 6: Request for Information Under Section 6 of the ES1 form, the complainant is entitled to question the respondent to obtain relevant information. "Pursuant to the Equal Status Acts, I require the University to answer the following:

1. Provide the academic and administrative justification for rejecting my 2025 application by claiming Computer Science is not available on the MGO, despite the documented existence of Module ED6156 (Ríomheolaíocht Bliain 1) on the University curriculum.
2. Provide the University's specific policy regarding the admission of persons with disabilities who hold dormant NQT status and require retraining.
3. Detail how the University justifies using a 2021 English-medium teaching qualification to permanently ban a disabled applicant from the only Irish-medium master's programme (MGO), thereby permanently preventing them from becoming an Irish-speaking teacher.
4. Detail how the refusal of a First Class Honours Software Design graduate aligns with the MGO's obligations as an Apple Distinguished School and a beneficiary of COGG funding targeted at STEM teacher supply in the Gaelcholáiste sector."

Demand for Public Adjudication The complaint must explicitly reject mediation and state the intention to proceed to Public Adjudication. Following the Supreme Court decision in *Zalewski v Adjudication Officer* IESC 24 and the subsequent Workplace Relations (Miscellaneous Provisions) Act 2021, WRC adjudications determining civil rights must generally be held in public. Mediation is confidential and inappropriate for addressing systemic administrative falsehoods regarding curriculum availability and the permanent barring of English-medium NQTs from the Irish language sector. A public hearing is demanded to ensure transparency regarding the University's discriminatory policies.

WRC ES1 Complaint II: The Office of the Dean of Students and Discriminatory Email Filtering

The second statutory complaint under the Equal Status Acts targets the systemic filtering and

interception of the applicant's emails by the Office of the Dean of Students and Information Solutions and Services (ISS).

Factual and Legal Context: Denial of Service

The evidence demonstrates that emails sent from the applicant's domain (@cianfhoghlaime.ie) to various university departments—including Arts Admissions, the School of Computer Science, and specific professors—trigger an automated reply from the Dean of Students, indicating interception and diversion.

The applicant has received an unconditional offer and paid a €500 deposit to commence the MSc in Artificial Intelligence in September 2026. However, the ongoing interception acts as a blanket technological embargo. A critical incident occurred in April 2026 when the applicant attempted to email admissions and disability staff to request an "Exceptional Circumstances Deposit Waiver Request." This vital communication was intercepted and blocked by the Dean of Students' automated system.

As a direct consequence of this technological embargo, the applicant was denied a financial accommodation that is available to other disabled applicants, forcing them to place severe financial pressure on their dying grandmother to secure the €500 deposit.[1, 1] This caused documented, severe psychological trauma. Selectively blocking an active, disabled applicant's communications, while allowing non-disabled prospective students free communication with faculty, constitutes direct discrimination and victimisation under Section 3 of the Equal Status Acts. It is a punitive measure entirely divorced from any legitimate academic or administrative function.

Drafting the ES1 Notification: Office of the Dean of Students

Section 5: Details of the Alleged Discrimination "I hereby submit this notification alleging discrimination on the ground of Disability (Section 3(2)(g)) and Victimisation (Section 3(2)(j)) in the provision of a Service (Section 5) by the University of Galway, specifically orchestrated by the Office of the Dean of Students, the Office of the President, and Information Solutions and Services (ISS).

Since at least January 2026, all electronic communications sent from my professional domain (@cianfhoghlaime.ie) to various University of Galway staff and departments have been systematically intercepted, filtered, and diverted by the Office of the Dean of Students. This is evidenced by automated replies generated by the Dean's office when attempting to email independent academic departments and admissions coordinators.

This technological embargo constitutes a discriminatory denial of service. I hold an unconditional offer and have paid a €500 deposit for the MSc in Artificial Intelligence commencing September 2026. As an incoming disabled student, I require equitable access to communicate with faculty, admissions personnel, and disability advisors. On 18 April 2026, my email requesting an 'Exceptional Circumstances Deposit Waiver Request' was intercepted by the Dean of Students' filter. Because I was blocked from accessing university services, I was denied a financial accommodation available to other disabled applicants. This forced me to place severe financial pressure on my grandmother to secure the €500 deposit, resulting in severe psychological trauma. The University has weaponized its IT infrastructure against a disabled applicant. This treatment is a direct act of victimisation linked to my previous assertions of my statutory rights regarding disability accommodations. Non-disabled prospective students are not subjected to an institution-wide communication embargo.

Preclusion and Jurisdiction Clause: This complaint is strictly limited to the discriminatory provision of communication services and technological access to the institution under the Equal Status Acts. It explicitly excludes all tortious claims, including defamation, misfeasance in public office, and breach of contract/fair procedures arising from the QA269 suspension of September 2024, which are the exclusive subject of separate High Court plenary proceedings."

Section 6: Request for Information "Pursuant to the Equal Status Acts, I require the University to answer the following:

1. Provide the specific policy, statutory basis, or legal authority under which the Office of the Dean of Students instructed Information Solutions and Services (ISS) to filter, intercept, block, or redirect emails originating from my domain to independent academic staff.
2. Confirm the exact date this email filtering mechanism was implemented across the University network and identify the specific University officer who authorized its deployment.
3. Detail exactly how the University intends to facilitate my statutory right to seek admission, academic guidance, and reasonable accommodations for the MSc in Artificial Intelligence (September 2026 intake) while this discriminatory communication embargo remains in place."

As with the first complaint, this ES1 must explicitly reject mediation and demand a public adjudication to expose the misuse of institutional IT infrastructure to silence a disabled applicant.

The High Court Plenary Action: Institutional Malfeasance and Tortious Liability

While the Workplace Relations Commission provides the statutory framework for addressing the denial of educational services and reasonable accommodation, it lacks the jurisdiction to provide remedies for common law torts, reputational destruction, and breaches of constitutional justice. The severe administrative malfeasance exhibited by the University's senior officers demands the initiation of a plenary civil action in the High Court.

Factual Anatomy of the Institutional Overreach

The timeline of events in September 2024 reveals a stark pattern of retaliatory administrative action.

- On **September 3, 2024**, the applicant submitted a formal, signed QA611 Student Complaint regarding an incident involving University Security Services and Gardaí in the summer of 2019. The complaint detailed how the applicant, while homeless and relying on COPE Galway, was profiled, followed without cause, and subsequently subjected to physical force while seeking refuge in a disabled toilet, asserting a breach of his rights as a disabled student.
- The QA611 Student Complaints Procedure mandates a structured response, beginning with Stage 1 (Local Resolution) and progressing to Stage 2 (Review by Dean of Students).
- Instead of processing this complaint, Interim President Professor Peter McHugh and Dean of Students Professor Ciara Meehan initiated a punitive disciplinary track. On **September 19, 2024**, they invoked an immediate "Stage 3" temporary suspension under the QA269 Support for Students in Crisis policy.

Tortious Claim I: Breach of Fair Procedures and Constitutional Justice

The relationship between a university and its student is governed by public law principles of natural and constitutional justice, specifically the right to fair procedures and the right to be heard (*audi alteram partem*).

- **The Breach:** The QA269 Support for Students in Crisis policy is ostensibly designed to support vulnerable students. However, the internal "Note of Concern Record" explicitly admits a gross procedural deviation: "As stage 3 was invoked in line with Appendix 5 of QA269, stages one and two, where an action plan would ordinarily be agreed, was bypassed".
- **The Liability:** By bypassing Stages 1 and 2, the Dean of Students and the President denied the applicant any opportunity to respond to the concerns, present counter-medical evidence, or participate in the formulation of an action plan. Imposing an immediate suspension and campus ban without a hearing, particularly against a student with known cognitive and trauma-related disabilities, is a draconian violation of constitutional justice. The High Court will be asked to declare the suspension *ultra vires* and void *ab initio*.

Tortious Claim II: Defamation

The internal communications and the execution of the QA269 suspension generated highly prejudicial and defamatory material that was published to third parties, causing severe reputational damage.

- **The Breach:** The University compiled a "Student Risk Assessment" grid that characterized the applicant's emails—which sought accountability for historical abuse and medical malpractice—as "disturbing". The assessment framed the applicant as a high risk to staff, students, and the wider community, assessing his potential to cause distress as "Elevated" to "Severe" without relying on independent clinical psychiatric evaluation.
- **The Liability:** Under the Defamation Act 2009, defamation constitutes the publication, by any means, of a defamatory statement concerning a person to one or more other persons. The University published these highly damaging assessments internally to staff and externally to Queen's University Belfast. The defamatory meaning conveyed is that the applicant is unstable, dangerous, and a threat to the campus. This framing directly resulted in devastating real-world consequences; the applicant explicitly notes receiving "death threats from people claiming I creep around children and campus" due to the revocation of references and the spread of these institutional narratives. The High Court action will seek substantial general and special damages for the destruction of the applicant's professional and personal reputation among his peers and within the academic community.

Tortious Claim III: Negligence and Breach of Duty of Care

The University owes a strict duty of care to its students, particularly those with documented vulnerabilities and disabilities.

- **The Breach:** The University was in possession of extensive medical documentation detailing the applicant's vulnerabilities. Letters from the Head of Student Counselling, James McCormack, and Disability Advisor Maeve McCaldin confirmed the applicant's ongoing anxiety disorder, CPTSD, and the necessity of reasonable accommodations

during times of stress.

- **The Liability:** Despite possessing this medical knowledge, the Dean of Students weaponized a "crisis support" policy (QA269) as a blunt disciplinary instrument. Rather than providing the support requested in the September 3 QA611 complaint, the University retaliated with a suspension that severed the applicant's access to vital educational structures. This deliberate administrative hostility constitutes a breach of the duty of care. It was entirely foreseeable that imposing an immediate, unreasoned suspension on a student suffering from a Traumatic Brain Injury and CPTSD would cause severe psychological distress and exacerbate their psychiatric injury. The High Court claim will seek damages for negligently inflicted psychiatric harm.

Tortious Claim IV: Misfeasance in Public Office

- **The Breach:** Misfeasance in public office occurs when a public officer exercises their power with targeted malice or with reckless indifference to the illegality of their actions and the probability of causing injury.
- **The Liability:** The Plenary Summons will allege that the Dean of Students and the President knowingly exceeded their authority. They deliberately misappropriated the QA269 policy to silence and stonewall a legitimate QA611 complaint regarding campus security abuses. The simultaneous implementation of an institution-wide email filtering system demonstrates a concerted, malicious effort to excommunicate the applicant from the university ecosystem, fulfilling the criteria for misfeasance.

Digital Provenance and the Evidentiary Base (CIAN_CV Repository)

A critical component of dismantling the University's defense—particularly any reliance on "academic judgment" for the MGO refusal or assertions that the applicant is unfit for the academic environment—lies in the applicant's established pedagogical and technological provenance.

The applicant maintains an extensive, publicly verifiable digital repository at github.com/cianfhoghlaime/kings_college_galway, specifically within the CIAN_CV and sruth/oideachais directories. This repository serves as an immutable evidentiary base that directly contradicts the University's defamatory risk assessments and administrative falsehoods. The repository contains vital documentation, including:

1. **placement_reference.pdf:** This document provides verifiable evidence of the applicant's pedagogical competence, classroom management skills, and successful placement history. It serves as a direct rebuttal to any institutional narrative suggesting the applicant poses a risk in an educational setting or lacks the aptitude for teaching.
2. **action_research_project_plickers.pdf and creative_coding_for_maths_makers_balefired.pdf:** These files showcase the applicant's advanced capability in integrating technology and creative coding into mathematics education.

This digital evidence is highly potent for both legal avenues. In the WRC proceedings, these documents prove that the applicant possesses the precise, advanced technological skills mandated by COGG funding initiatives and the Apple Distinguished School obligations. This renders the School of Education's refusal to admit a First Class Honours Software Design

graduate mathematically and pedagogically irrational, proving the exclusion was based on discriminatory animus regarding his disability, not academic merit.

In the High Court proceedings, this repository establishes the applicant's high standing, innovation, and reputation in the field of educational technology. It magnifies the damages calculable for defamation, demonstrating exactly what was lost when the Dean of Students recklessly generated and disseminated risk assessments that painted a highly capable, innovative educator as a campus threat.

Strategic Litigation Roadmap

The University of Galway has engaged in a sustained pattern of administrative hostility, culminating in the discriminatory refusal of retraining opportunities, the interception of academic communications, and the punitive misapplication of crisis protocols to silence legitimate grievances. To execute this legal strategy successfully and ensure maximum accountability, the following procedural roadmap must be strictly adhered to:

1. **Immediate WRC Action:** Draft and issue the two distinct Form ES1 Notifications to the University of Galway immediately. These must focus exclusively on the MGO refusal (highlighting the ED6156 module factual error and NQT prejudice) and the ongoing email filtering by ISS/Dean of Students. It is imperative that the *preclusion and jurisdiction clauses* are explicitly included to protect the civil rights claims from a *Henderson v Henderson* strike-out motion.
2. **Statutory Information Gathering:** Concurrently file comprehensive Data Protection Subject Access Requests (SAR) and Freedom of Information (FOI) requests targeting the Office of the Dean of Students, the Office of the President, and ISS. The objective is to secure the internal directives that authorized the email filtering and the unredacted communications between Prof. Ciara Meehan and Interim President Peter McHugh leading to the September 19 QA269 suspension.
3. **High Court Plenary Filing:** Instruct a solicitor and counsel to draft the Plenary Summons and Statement of Claim based on the torts outlined in Part IV (Breach of Fair Procedures, Defamation, Negligence, Misfeasance). The timeline for bringing claims for breach of fair procedures and defamation is strict; proceedings should be initiated without delay to compel the University to defend its administrative malfeasance in open court.
4. **Demand for Public WRC Adjudication:** Upon the expiration of the statutory ES1 response period, formally lodge the complaints online with the WRC. Explicitly reject any offers of mediation. Relying on the *Zalewski* judgment and the 2021 Act, demand a public adjudication to ensure the University's discriminatory policies regarding disabled NQTs, its failure to adhere to Apple/COGG mandates, and its weaponization of IT infrastructure are subjected to rigorous public scrutiny.

By maintaining a rigid, legally sound separation between the statutory equality claims in the WRC and the common law torts in the High Court, this strategy effectively bypasses the University's reliance on "academic judgment," shields the applicant from duplicity of proceedings motions, and ensures comprehensive accountability across all avenues of Irish law.

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